

1 HOUSE BILL NO. 215

2 INTRODUCED BY C. HINKLE, L. SCHUBERT, K. LOVE, T. SHARP, E. BYRNE, L. BENNETT, C. SCHOMER,
3 T. MANZELLA, D. ZOLNIKOV, D. EMRICH, J. FULLER, R. MARSHALL, N. NICOL, A. REGIER, D. LOGE, C.
4 GLIMM, B. LER, J. SCHILLINGER, K. ZOLNIKOV, J. ETCHART, L. DEMING, F. NAVE, B. USHER, J.
5 GILLETTE, L. BREWSTER, T. FALK, G. KMETZ, B. MERCER, B. MITCHELL, G. NIKOLAKAKOS, M.
6 NOLAND, K. SEEKINS-CROWE, Z. WIRTH, S. MANESS, K. BOGNER, J. HINKLE, B. PHALEN

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8 A BILL FOR AN ACT ENTITLED: "AN ACT ELIMINATING GENDER AND RACIAL BALANCING FOR
9 APPOINTMENTS BY BOARDS, COMMISSIONS, COMMITTEES, AND COUNCILS OF STATE
10 GOVERNMENT; ELIMINATING REPORTING REQUIREMENTS; AND AMENDING SECTION 2-15-108,
11 MCA."

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13 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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15 **Section 1.** Section 2-15-108, MCA, is amended to read:

16 **"2-15-108. ~~Gender and racial balance~~ report to legislature Appointments and vacancies. (4)**

17 ~~As vacancies occur and appointments are made, all appointing authorities of all appointive boards,~~
18 ~~commissions, committees, and councils of state government shall take positive action to attain gender balance~~
19 ~~and proportional representation of minorities resident in Montana to the greatest extent possible.~~

20 (2) ~~Pursuant to subsection (1), the~~ The secretary of state shall publish in the Montana
21 Administrative Register on a monthly basis the recent appointments made by the executive branch and the
22 upcoming vacancies on executive boards and commissions.

23 (3) ~~The governor shall report to the legislature, as provided in 5-11-210, on the progress made~~
24 ~~toward achieving the goals set forth in this section."~~

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